

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

CERTIFIT, INC., *Complainant*

v.

EVERGREEN SHIPPING AGENCY (AMERICA) CORP.,
AS AGENT FOR EVERGREEN LINE, EVERGREEN GROUP
D/B/A EVERGREEN LINE, *Respondent*.

DOCKET NO. 23-03

Served: July 13, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER TO FILE JOINT STATUS REPORT AND PROPOSED SCHEDULING ORDER

On May 5, 2023, an Initial Order issued in this proceeding, ordering the parties to submit a joint status report with proposed schedule within twenty days of the service of the answer. On May 25, 2023, Respondent filed an Answer. More than twenty days have passed and no joint status report with proposed schedule for discovery and briefing has been received.

The parties are reminded that the Commission's Notice requires the initial decision in this case to be issued within one year of the Notice of Filing of Complaint, which is May 6, 2024. Further, pursuant to Rule 141, discovery must be completed within 150 days of the service of a respondent's answer. In the joint status report, the parties must submit a joint proposed schedule that completes discovery within 150 days of service of the answer and allows issuance of the initial decision within one year.

As described in greater detail in the Initial Order, within fifteen days of the service of a respondent's answer, the parties were required to "participate in a preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS) as to whether this matter may be resolved through mediation." The joint status report should include a statement regarding whether this preliminary conference has been scheduled and/or completed.

The parties are hereby **ORDERED** to submit a joint status report and proposed scheduling order no later than July 18, 2023.



Linda S. Harris Crovella
Administrative Law Judge